

25NNCV06250 25NNCV06250

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 25NNCV06250 Hearing Date: August 21, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED

Hearing Date: 08/21/26

CASE NO.: 25NNCV06250

CASE NAME: Jordyn Green-Brown v. Brady Trucking, Inc., et al.

Moving Party: Defendant Brady Trucking, Inc.

Responding Party: Plaintiff Jordyn Green-Brown

Notice: Sufficient

Ruling: GRANT.

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at

 or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal injury case arising from a motor vehicle accident that occurred on November 3, 2023. On September 5, 2025, Plaintiff Jordyn Green-Brown (Plaintiff) filed a Complaint against defendants Brady Trucking, Inc. (Defendant), John Doe, and DOES 1 to 50, inclusive alleging personal injury, property damage, and general negligence. On December 29, 2025, Defendant filed an Answer.

On June 3, 2026, Defendant filed the instant motion to compel requests for admission (RFAs) admitted. On July 10, 2026, the Court granted Vanessa Marie Fantasia's motion to be relieved as Plaintiff's counsel. On July 20, 2026, Plaintiff's former counsel filed a response out of abundance of caution, due to having not yet received the signed July 10th order. On July 24, 2026, Defendant filed a reply.

On July 31, 2026, the Court delivered a signed order reliving Plaintiff's former counsel. On July 31, 2026, the matter was called for hearing, and the Court granted Defendant's request for sanctions but continued the motion to deem RFAs admitted to afford Plaintiff the opportunity to retain new counsel or appear pro per.

As

of August 13, 2026, Plaintiff has not filed an opposition.

LEGAL

STANDARD

A party must respond to requests for admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) "If a party to whom requests for admission are directed fails to serve a timely response...(a) [that party] waives any objection to the requests, including one based on privilege or on the protection for work product..." (Code Civ. Proc., § 2033.280, subd. (a).) "The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as

well as for a monetary sanction under Chapter 7.” (Code Civ. Proc., § 2033.280, subd. (b).)

DISCUSSION

Defendant contends that Plaintiff failed to timely respond to the RFAs on or by the statutory deadline. (Mot., p. 1.)

Deem Request for Admission Admitted

Here, Defendant’s counsel served Plaintiff with the RFAs by electronic service on December 29, 2025. (Marquez Decl., ¶ 2.) Defendant granted three extensions at the request of Plaintiff, bringing the due date to April 7, 2026. (Marquez Decl., ¶ 3.) On April 1, 2026, Plaintiff served Defendant responses to the RFAs without verifications. (Marquez Decl., ¶ 4.) On April 27, 2026, Defendant requested verifications from Plaintiff and provided additional time to provide the signed verifications. (Ibid.) Defendant argues that because Plaintiff has failed to serve verified responses, Plaintiff has not properly responded to the RFAs. (Mot., p. 2.)

Plaintiff’s former counsel did not substantively oppose the motion but instead requested continuance, in the interest of justice, due to the status of Plaintiff’s representation. (Resp., p. 2.) On July 31, 2026, Plaintiff’s former counsel received a signed order relieving them from representation. (See 7/31/26 Court Order.) To date Plaintiff has not filed an opposition.

Here, Plaintiff has failed to provide verified responses to Defendant’s discovery request, thus Plaintiff has not effectively responded to Defendant’s discovery requests by the statutory deadline, or deadline set after several extensions. (Marquez Decl., ¶ 5.) The Court continued this hearing in the interests of justice, and Plaintiff is yet to oppose the motion or respond to the subject discovery requests.

Accordingly, the motion to deem RFAs admitted is GRANTED.

CONCLUSION

AND ORDER

Defendant Brady

Trucking, Inc.'s motion to deem RFAs admitted is GRANTED.

MOVING PARTY shall provide notice and
provide a proposed order consistent with this ruling within 15 days from this
date.